@properties

BUYER/TENANT EXCLUSIVE AGENCY CONTRACT

This Contract is entered into and shall commence on 03/01/2026, by @properties of Central Indiana (hereinafter referred to as "Broker") and James Hodges Lauren Reckley (Buyer/Tenant). Where the word "Buyer appears, it could mean "Tenant." Where the word "purchase" appears, it could mean "Lease." Buyer appoints Broker Company, as Buyer's Exclusive Agent, for the purpose of assisting Buyer to locate real property for purchase or lease, and to negotiate terms and conditions acceptable to Buyer for purchase or lease of real property. This Contract shall terminate at 11:59 pm on 05/01/2026. If Buyer/Tenant enters into a Purchase Agreement/Lease during the term of this Contract and the closing will not take place until after the term of this Contract, then this Contract shall automatically be extended to coincide with the closing date.

A. **BUYER AGREES** and acknowledges that Buyer has no current Buyer Agency Agreement with any other real estate broker(s) for the same scope of work. Buyer represents that if Buyer previously entered into any conflicting Buyer Agency Agreement that such agreement has expired and/or has been terminated. A conflicting Buyer Agency Agreement is one that overlaps in scope, time, and/or conditions with the current Agreement. **By entering into multiple buyer representation agreements, Buyer understands that Buyer could be liable for paying multiple commissions and/or fees.**

B. BROKER AGREES to diligently attempt to locate property acceptable to Buyer; to negotiate price, terms and conditions acceptable to Buyer, for the purchase or lease of property; and shall act in the Buyer's best interest during the term of this Contract.

C. DESCRIPTION (including, but not limited to, location, price range, and other terms):
Exclusively for property at 7129 Bellini Lane, Indianapolis, IN

D. BROKER'S COMPENSATION:

1. **Commission**: In consideration for the services to be performed by Broker, Buyer agrees to pay Broker a commission of $ _____ U.S. Dollars or 3 % of the total purchase price; however, the total commission paid to Broker shall not be less than $_____ U.S. Dollars. **If Broker, with the consent of Buyer, is to receive any compensation from a Seller FSBO/Builder/Landlord Compensation Agreement or a Purchase Agreement, then such compensation shall be credited against Buyer's financial obligations to Broker. Broker shall make attempt to cause the Seller to satisfy the Buyer's obligation to Broker. To the extent any amount to be paid by Seller is inadequate to satisfy Buyer's obligation pursuant to this Contract, Buyer shall remain obligated to Broker for the difference. Broker may not receive compensation for brokerage services from any source that exceeds the amount or rate agreed to in the Agreement with the Buyer.**

   Broker shall be entitled to the commission hereinafter established which shall be payable in U.S. Dollars upon the occurrence of any of the following events:

   a. Buyer or any other person or entity acting for or through Buyer or on Buyer's behalf, acquires any real property or interest as described herein, either explicitly or through comprehensive services, during the term of this Contract through the services of Broker or otherwise.

   b. Buyer or any other person acting for Buyer or on Buyer's behalf, acquires any real property or interest as described herein during the term of this contract or any renewal or extension thereof, and ultimately completed after the termination of this contract.

   c. Buyer or any other person or entity acting for or through Buyer, acquires any real property or interest described herein, either explicitly or through comprehensive services, which was disclosed to Buyer by Broker during the term of this Contract or within 30 days after termination of this Contract, provided, however, this extension clause shall not apply if this Exclusive Agency Contract terminates and the Buyer is represented exclusively by another licensed broker, or

d. Buyer or any other person acting for Buyer or on Buyer's behalf, defaults on any valid, fully executed, written agreement to purchase, option, exchange or lease Property.

2. Other _____

Any commission required to be paid under items a., b. or c. above shall be due and payable at the closing of the transaction when title to or any interest in the Property is transferred to Buyer or Lessee. Any commission required to be paid under item d. above shall be due and payable upon demand by Broker. In the event that commission is not paid when due, then Broker shall be entitled to interest rate of 6 % per annum until commission is paid.

Broker's commission for services rendered, in respect to any broker, is not set by law, is **solely a matter of negotiation between the Broker and the Buyer** and is not fixed, controlled, suggested, recommended, or maintained by the Indiana Association of REALTORS®, Inc., the local Board/Association of REALTORS®, the listing service (if applicable) or any person not a party to the contract.

E. AGENCY DISCLOSURES AND POLICY:

1. **Office Policy**. Buyer acknowledges @properties written office policy relating to agency is as follows:

a. **Agency Relationships.** I.C. 25.34.1-10-9.5 provides that a Licensee has an agency relationship with, and is representing, the individual with whom the Licensee is working unless (1) there is a written agreement to the contrary or (2) the Licensee is merely assisting the individual as a customer, Licensee (Broker) represents the interests of the Buyer as Buyer's agent to buy the Property. A licensee representing a Buyer has the following duties and obligations:
1. To fulfill the terms of the agency relationship made with the Buyer.
2. To disclose the nature of the agency relationship with the Buyer, and redefine and disclose if the relationship changes.
3. To Promote the interests of the Buyer by:
a.) Seeking the property with a price or lease rate and contract terms satisfactory to the Buyer; however, the licensee is not obligated to locate other properties to purchase while the Buyer is under contract to buy property, unless otherwise agreed between the parties;
b.) Presenting all offers to purchase to and from the Buyer immediately upon receipt of an offer regardless of whether the Buyer is already under contract to buy property, unless otherwise directed by the Buyer;
c.) Disclosing to the Buyer adverse material facts or risks actually known by the licensee concerning the real estate transaction.
d.) Advising the Buyer to obtain expert advice concerning material matters that are beyond the licensee's expertise.
e.) Timely accounting for all the money and property received from the Buyer;
f.) Exercising reasonable care and skill; and
g.) Complying with the requirements of this chapter and all applicable federal, state, and local laws, rules, and regulations, including fair housing and civil rights statutes, rules, and regulations.

Licensee owes duties of trust, loyalty, confidentiality, accounting and disclosure to the Buyer. The duties of accounting and confidentiality extend beyond the agency relationship unless disclosure of confidential information is required by law, becomes public or the client gives written consent to disclose. A licensee representing a Buyer owes no duties or obligations to the seller except that a licensee shall treat all prospective sellers honestly and not knowingly give them false information. All representations made by Licensee are made as the agent of the Buyer.

b. **Seller Representation.** @properties will represent Sellers as their Agent and shall render services to act in the best interests of the Seller, create exposure of the property to prospective Buyer, and minimize potential liability to the Seller. Indiana Law (I.C. 25-34. 1-1-10-9.5) provides that an Agent must also perform the following duties for a Seller:
1. Be available to receive, timely present and answer questions regarding offers, counter-offers, notices, various addenda, and contingencies pertaining to the subject property.
2. Assist in negotiation, completing real estate forms and communicating in relation to the Offers and Counter-Offers until a purchase agreement is signed and all contingencies are satisfied or waived.
3. Attend, participate and advise the Seller during closing.

c. **Limited Agency Authorization**. In accordance with Indiana law, I.C. 25-34.1-10-12, Licensee or the Managing Broker may represent the seller as a seller agent. If Buyer wishes to see the Property listed by Licensee or the Managing Broker, then Licensee has agency duties to both Buyer and Seller, and those duties may be different or even adverse. Buyer also acknowledges Buyer knowingly consents to Licensee acting as a limited agent for such showings.

If limited agency arises, Licensee **shall not disclose** the following without the informed consent, in writing, of both Buyer and Seller:

1. Any material or confidential information, except adverse material facts or risks actually known by Licensee concerning the physical condition of the Property and facts required by statute, rule, or regulation to be disclosed and that could not be discovered by a reasonable and timely inspection of the Property by the parties.
2. That a Buyer will pay more than the offered purchase price for the Property.
3. That Seller will accept less than the listed price for the Property.
4. Other terms that would create a contractual advantage for one party over another party.
5. What motivates a party to buy or sell the Property.

In a limited agency situation, the parties agree that there will be no imputation of knowledge or information between any party and the limited agent or among Licensees. Buyer also acknowledges that Licensee owes both parties honest and fair dealings, but is not authorized to disclose information that is personal to the Buyer and does not affect the condition of the real estate.

Buyer acknowledges that Limited Agency Authorization has been read and understood. Buyer understands that Buyer does not have to consent to Licensee(s) acting as limited agent(s).

Buyer ☐ does ☒ does not give voluntary, informed consent to Limited Agency and waives any claims, damages, losses, expenses, including attorneys' fees and costs, against Licensee(s) arising from Licensee's(s') role of limited agent(s). If limited agency is accepted by both parties to the transaction, Buyer understands and approves Broker may receive compensation from a Seller.

d. **Acknowledgements.** This undersigned client acknowledges that:

1. Article 1 of the National Association of REALTORS® Code of Ethics and Standards of Practice states: "When representing a Buyer, Seller, landlord, tenant, or other client as an Agent, REALTORS® pledge themselves to protect and promote the interests of their clients. This obligation to the client is primary, but it does not relieve REALTORS® of their obligation to treat all parties honestly."
2. That they have been provided the opportunity to have an attorney, tax accountant or other professional advise them regarding any consequences of this agreement, legal or otherwise, and
3. That they have read and understand the entire agreement and have approved the agency relationship defined.

F. CONSENT TO REPRESENT OTHER BUYERS:

Buyer understands and agrees that Broker may from time to time represent other buyers who may be interested in acquiring the same property as Buyer may wish to acquire. Buyer expressly waives any claim, including, but not limited to, breach of fiduciary duty or breach of contract based solely upon Broker's representation of other buyers who may be seeking to acquire the same property as Buyer, even if the other buyer represented by Broker does acquire that property.

G. RECORDING AT THE PROPERTY. Buyer should be aware that an owner may utilize audio and/or video devices to monitor their property. Buyer should not discuss negotiation strategy or other confidential information within a property. Buyer hereby releases Broker, Broker Company and its agents from any liability which may result from any recording occurring within a property.

H. FAIR HOUSING. The parties acknowledge that the Fair Housing Act prohibits discrimination in housing because of race, color, national origin, religion, sex, familial status and disability. Due to Fair Housing risks, Broker will not prepare, review, or submit personal information letters, including photographs, from Buyer to Seller. The National Association of REALTORS Code of Ethics also prohibits REALTORS from discrimination on the basis of sexual orientation or gender identity.

I. CONFIDENTIALITY. Buyer has been advised of the possibility that Sellers or Sellers' representative may not treat the existence, terms, or conditions of offers as confidential unless confidentiality is required by law, regulation, or by any confidentiality agreement between the parties.

J. LEGAL DISCLAIMER. Buyer acknowledges that the Broker is not a professional or expert in the matters of law, financing, taxes, property conditions and/or inspections. In addition, the Broker has advised and recommended the Buyer to seek expert assistance for advice on such matters. Broker makes no warranty or guarantee concerning the service of such experts or their products, the condition of the property, the absence of defects therein, or the suitability of such property for Buyer's purposes.

K. ATTORNEY'S FEES: Any party to this Agreement who is the prevailing party in any legal or equitable proceeding against any other party brought under or with relation to this Agreement shall be additionally entitled to recover court costs and reasonable attorney's fees from the non-prevailing party;

L. WIRE FRAUD. **If you receive any electronic communication directing you to transfer funds or provide nonpublic personal information, EVEN IF THAT ELECTRONIC COMMUNICATION APPEARS TO BE FROM BROKER OR TITLE COMPANY, do not respond until you verify the authenticity by direct communication with Broker or Title Company. Do not rely on telephone numbers provided in the electronic communication. Such requests may be part of a scheme to steal funds or use your identity to commit a crime.**

M. BUYER'S RESPONSIBILITIES. Buyer acknowledges and agrees to the following non-exhaustive list of responsibilities, which are binding requirements of this Contract:

1. Provide Licensee with Buyer's general specifications for the real estate Buyer is seeking.
2. Work exclusively with Licensee to identify and acquire real estate, in accordance with the parameters in Section C, above, during the time that this Contract is in force.
3. Bring to Licensee's attention any un-listed properties Buyer may be interested in to allow the Licensee to fully represent Buyer.
4. Supply relevant and accurate financial information necessary to permit Licensee to fulfill Licensee's obligations under this Contract.
5. Inform Licensee whether Buyer is licensed and holds real estate license#: _____
6. Comply with all other terms of this Contract.

N. FURTHER CONDITIONS:

_____

_____

_____

_____

O. ACKNOWLEDGEMENTS:

1. Buyer has read and understands this Contract.
2. This Contract contains the entire agreement of the parties and can only be changed in writing and signed by all parties.
3. This Contract is binding upon all the parties, their heirs, administrators, executors, successors and assigns.
4. Buyer has received an executed copy of this Contract.
5. Broker holds a valid Indiana Real Estate License.
6. Buyer consents to receive communications from Broker via telephone, U.S. mail, email, and text message at the numbers/addresses provided to Broker unless Buyer notifies Broker in writing to the contrary.
7. Buyer acknowledges that Broker has no duty to disclose the racial, ethnic or religious composition of any neighborhood, community or building, nor whether persons with disabilities are housed in any home or facility, except that the Broker may identify housing facilities meeting the needs of a disabled buyer.
8. Where the word "Broker" appears, it shall mean "Licensee" as provided in I.C. 25-34.1-10-6.8.
9. Buyer authorizes Buyer Broker to disclose post-closing information, including seller concessions and any broker compensation paid by Seller, if requested by an appraiser.

P. AFFILIATED BUSINESS ARRANGEMENT DISCLOSURE:

This is to give Buyer notice that Owners and some affiliated Agents of @properties of Central Indiana have common ownership and/or a business relationship with various entities, including title companies and mortgage companies that may be referred to Buyer. Because these entities are related through ownership, the referring party may receive a financial or other benefit as a result.

THERE ARE OTHER TITLE AND MORTGAGE COMPANIES AVAILABLE WITH SIMILAR SERVICES. BUYER IS FREE TO USE THEIR BEST JUDGMENT TO DETERMINE THAT THEY ARE RECEIVING THE BEST SERVICES AND THE BEST RATE FOR THOSE SERVICES AND ARE NOT REQUIRED TO USE ANY PARTICULAR TITLE OR MORTGAGE COMPANY FOR THE TRANSACTION.

I understand that the referring party as described above may refer me for title services or mortgage services as described above and the referring party may receive a financial or other benefit as the result of this referral.

This Agreement may be executed simultaneously or in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. The parties agree that this Agreement may be transmitted between them electronically or digitally. The parties intend that electronically or digitally transmitted signatures constitute original signatures and are binding on the parties. The original document shall be promptly delivered, if requested.

Scott White	RB14043279	DocuSigned by: 3E952FE3343C485...	3/3/2026 | 9:37 PM EST
AGENT	**IN LICENSE #**	**BUYER/TENANT SIGNATURE**	**DATE**
@properties of Central Indiana	RC51100159	James Hodges	
BROKER COMPANY NAME	**IN LICENSE #**	**PRINTED**	
Signed by: MEGAN SULLIVAN 3A6AB692CF774FE...	3/4/2026 | 9:02 AM EST	Signed by: 73E4073CA6C24E2...	3/3/2026 | 9:11 PM CST
ACCEPTED BY: MANAGING BROKER		**BUYER/TENANT SIGNATURE**	**DATE**
		Lauren Reckley	
		PRINTED	